

[REPUBLIC ACT NO. 9775, November 17, 2009]

AN ACT DEFINING AND PENALIZING THE CRIME OF CHILD PORNOGRAPHY, PRESCRIBING PENALTIES THEREFOR AND FOR OTHER PURPOSES

Be it enacted by the Senate and House of Representatives of the Philippines in Congress assembled:

SECTION 1. *Short Title.* — This Act shall be known as the "Anti-Child Pornography Act of 2009."

SEC. 2. *Declaration of Policy.* — The State recognizes the vital role of the youth in nation building and shall promote and protect their physical, moral, spiritual, intellectual, emotional, psychological and social well-being. Towards this end, the State shall:

- a. Guarantee the fundamental rights of every child from all forms of neglect, cruelty and other conditions prejudicial to their development;
- b. Protect the child from all forms of exploitation and abuse including, but not limited to: (1) the use of a child in the pornographic performances and materials; and (2) the inducement or coercion of a child to engage or be involved in pornography through whatever means; and
- c. Comply with international treaties to which the Philippines is a signatory or a State party concerning the rights of children which include, but not limited to, the Convention on the Rights of the Child, the Optional Protocol to the Convention on the Rights of the Child on the Sale of Children, Child Prostitution and Child Pornography, the International Labor Organization (ILO) Convention No. 182 on the Elimination of the Worst Forms of Child Labor and the Convention Against Transnational Organized Crime.

SEC. 3. *Definition of Terms.* —

- a. "Child" refers to persons below eighteen (18) years of age or over, but is unable to fully take care of himself/herself or protect himself/herself from abuse, neglect, cruelty, exploitation or discrimination because of a physical or mental disability or condition.

For the purpose of this Act, a child shall also refer to:

1. a person regardless of age who is presented, depicted or portrayed as a child as defined herein; and
 2. a computer-generated, digitally or manually crafted images or graphics of a person who is represented or who is made to appear to be a child as defined herein.
- b. "Child pornography" refers to any representation, whether visual, audio or written combination thereof, by electronic, mechanical, digital, optical, magnetic or any other means, of a child engaged or involved in real or simulated explicit sexual activities.
- c. "Explicit Sexual Activity" includes actual or stimulated —
1. Sexual intercourse or lascivious act including, but not limited to, contact involving genital to genital, oral to genital, anal to genital or oral to anal, whether between persons of the same or opposite sex;
 2. bestiality;
 3. masturbation;
 4. sadistic or masochistic abuse;
 5. lascivious exhibition of the genitals, buttocks, breast, pubic area and/or anus;
or
 6. use of any object or instrument for lascivious acts.
- d. "Internet address" refers to a website, bulletin board service, internet chat room or news group, or any other internet or shared network protocol address.
- e. "Internet café or kiosk" refers to an establishment that offers or proposes to offer services to the public for the use of its computer/s or computer system for the purpose of accessing the internet, computer games or related services.
- f. "Internet content host" refers to a person who hosts or who proposes to host Internet content in the Philippines.
- g. "Internet service provider (ISP)" refers to a person or entity that supplies, or proposes to supply, an Internet carriage service to the public.
- h. "Grooming" refers to the act of preparing a child or someone who the offender believes to be a child for a sexual activity or sexual relationship by communicating any form of child pornography. It includes online enticement, or enticement through any other means.
- i. "Luring" refers to the act of communicating, by means of a computer system, with a child or someone who the offender believes to be a child for the purpose of facilitating the commission of a sexual activity or production of any form of child pornography.
- j. "Pandering" refers to the act of offering, advertising, promoting, representing or distributing through any means any material or purported material that is intended to cause another to believe that the material or purported material contains any form of child pornography, regardless of the actual content of the material or purported material.
- k. "Person" refers to any natural or juridical entity.

SEC. 4. *Unlawful or Prohibited Acts.* — It shall be unlawful for a person to commit any of

the following acts:

- a. To hire, employ, use, persuade, induce or coerce a child to perform in the creation or production of any form of child pornography;
- b. To produce, direct, manufacture or create any form of child pornography;
- c. To publish, offer, transmit, sell, distribute, broadcast, advertise, promote, export or import any form of child pornography;
- d. To possess any form of child pornography with the intent to sell, distribute, publish or broadcast: *Provided*, That possession of three (3) or more articles of child pornography of the same form shall be *prima facie* evidence of the intent to sell, distribute, publish or broadcast;
- e. To knowingly, willfully and intentionally provide a venue for the commission of prohibited acts such as, but not limited to, dens, private rooms, cubicles, cinemas, houses or in establishments purporting to be a legitimate business;
- f. For film distributors, theaters and telecommunication companies, by themselves or in cooperation with other entities, to distribute any form of child pornography;
- g. For a parent, legal guardian or person having custody or control of a child to knowingly permit the child to engage, participate or assist in any form of child pornography;
- h. To engage in the luring or grooming of a child;
- i. To engage in pandering of any form of child pornography;
- j. To willfully access any form of child pornography;
- k. To conspire to commit any of the prohibited acts stated in this section. Conspiracy to commit any form of child pornography shall be committed when two (2) or more persons come to an agreement concerning the commission of any of the said prohibited acts and decide to commit it; and
- l. To possess any form of child pornography.

SEC. 5. *Syndicated Child Pornography*. — The crime of child pornography is deemed committed by a syndicate if carried out by a group of three (3) or more persons conspiring or confederating with one another and shall be punished under Section 15(a) of this Act.

SEC. 6. *Who May File a Complaint*. — Complaints on cases of any form of child pornography and other offenses punishable under this Act may be filed by the following:

- a. Offended party;
- b. Parents or guardians;
- c. Ascendant or collateral relative within the third degree of consanguinity;
- d. Officer, social worker or representative of a licensed child-caring institution;
- e. Officer or social worker of the Department of Social Welfare and Development (DSWD);
- f. Local social welfare development officer;
- g. Barangay chairman;
- h. Any law enforcement officer;
- i. At least three (3) concerned responsible citizens residing in the place where the violation occurred; or

- j. Any person who has personal knowledge of the circumstances of the commission of any offense under this Act.

SEC. 7. *Appointment of Special Prosecutors.* — The Department of Justice (DOJ) shall appoint or designate special prosecutors to prosecute cases for the violation of this Act.

SEC. 8. *Jurisdiction.* — Jurisdiction over cases for the violation of this Act shall be vested in the Family Court which has territorial jurisdiction over the place where the offense or any of its essential elements was committed pursuant to Republic Act No. 8369, otherwise known as "Family Courts Act of 1997".

SEC. 9. *Duties of an Internet Service Provider (ISP).* — All internet service providers (ISPs) shall notify the Philippine National Police (PNP) or the National Bureau of Investigation (NBI) within seven (7) days from obtaining facts and circumstances that any form of child pornography is being committed using its server or facility. Nothing in this section may be construed to require an ISP to engage in the monitoring of any user, subscriber or customer, or the consent of any communication of any such person: *Provided*, That no ISP shall be held civilly liable for damages on account of any notice given in good faith in compliance with this section.

Furthermore, an ISP shall preserve such evidence for purposes of investigation and prosecution by relevant authorities.

An ISP shall, upon the request of proper authorities, furnish the particulars of users who gained or attempted to gain access to an internet address which contains any form of child pornography.

All ISPs shall install available technology, program or software to ensure that access to or transmittal of any form of child pornography will be blocked or filtered.

An ISP who shall knowingly, willfully and intentionally violate this provision shall be subject to the penalty provided under Section 15(k) of this Act.

The National Telecommunications Commission (NTC) shall promulgate within ninety (90) days from the effectivity of this Act the necessary rules and regulations for the implementation of this provision which shall include, among others, the installation of filtering software that will block access to or transmission of any form of child pornography.

SEC. 10. *Responsibility of Mall Owners/Operators and Owners or Lessors of Other Business Establishments.* — All mall owners/operators and owners or lessors of other business establishments shall notify the PNP or the NBI within seven (7) days from obtaining facts and circumstances that child pornography is being committed in their premises: *Provided*, That public display of any form of child pornography within their premises is a conclusive presumption of the knowledge of the mall owners/operators and owners or lessors of other business establishments of the violation of this Act: *Provided, further*, That a disputable presumption of knowledge by mall owners/operators and owners or lessors of other business establishments is established if, through the exercise of

ordinary diligence, mall owners/operators and owners or lessors of other business establishments should know or reasonably know that a violation of this Act is being committed in their premises.

Photo developers, information technology professionals, credit card companies and banks and any person who has direct knowledge of any form of child pornography activities shall have the duty to report any suspected child pornography materials or transactions to the proper authorities within seven (7) days from discovery thereof.

Any willful and intentional violation of this provision shall be subject to the penalty provided under Section 15(l) of this Act.

SEC. 11. *Duties of an Internet Content Host.* — An Internet content host shall:

- a. Not host any form of child pornography on its Internet address;
- b. Within seven (7) days, report the presence of any form of child pornography, as well as the particulars of the person maintaining, hosting, distributing or in any manner contributing to such internet address, to the proper authorities; and
- c. Preserve such evidence for purposes of investigation and prosecution by relevant authorities.

An Internet content host shall, upon the request of proper authorities, furnish the particulars of users who gained or attempted to gain access to an internet address that contains any form of child pornography.

An Internet content host who shall knowingly, willfully and intentionally violate this provision shall be subject to the penalty provided under Section 15(j) of this Act. Provided, That the failure of the internet content host to remove any form of child pornography within forty-eight (48) hours from receiving the notice that any form of child pornography is hitting its server shall be conclusive evidence of willfull and intentional violation thereof.

SEC. 12. *Authority to Regulate Internet Cafe of Kiosk.* — The local government unit (LGU) of the city or municipality where an internet cafe or kiosk is located shall have the authority to monitor and regulate the establishment and operation of the same or similar establishments in order to prevent violation of the provisions of this Act.

SEC. 13. *Confidentiality.* — The right to privacy of the child shall be ensured at any stage of the investigation, prosecution and trial of an offense under this Act. Towards this end, the following rules shall be observed:

- a. The judge, prosecutor or any officer of the law to whom the complaint has been referred to may, whenever necessary to ensure a fair and impartial proceeding and after considering all circumstances for the best interest of the child, conduct a closed-door investigation, prosecution or trial;

- b. The name and personal circumstances of the child or any other information tending to establish his/her identity shall not be disclosed to the public;
- c. Any record regarding a child shall be confidential and kept under seal. Except upon written request and order of the court, a record shall be released only to the following:
 - 1. Members of the court staff for administrative use;
 - 2. The prosecuting attorney;
 - 3. Defense counsel;
 - 4. The guardian *ad litem*;
 - 5. Agents of investigating law enforcement agencies; and
 - 6. Other persons as determined by the court;
- d. Any form of child pornography that is part of the court records shall be subject to a protective order that provides as follows:
 - 1. Any form of child pornography may be viewed only by the parties, their counsel, their expert witness and guardian *ad litem*;
 - 2. Neither form of child pornography nor any portion thereof shall be divulged to any other person, except as necessary for the investigation, prosecution or trial; and
 - 3. No person shall be granted access to any form of child pornography or any part thereof unless he/she signs a written affirmation that he/she has received and read a copy of the protection order; that he/she submits to the jurisdiction of the court with respect to the protective order; and that in case of violation thereof, he/she will be subject to the contempt power of the court; and
- e. In cases when prosecution or trial is conducted behind closed doors, it shall be unlawful for any editor, publisher and reporter or columnist in case of printed materials, announcer or producer in case of television and radio, producer and director of a film in case of the movie industry, or any person utilizing the tri-media facilities or information technology to publish or broadcast the names of the victims of any case of child pornography.

Any violation of this provision shall be subject to the penalty provided for under Section 15(m) of this Act.

SEC. 14. *Care, Custody and Treatment of a Child Victim.* — The DSWD shall ensure that the child who is a victim of any form of child pornography is provided appropriate care, custody and support for their recovery and reintegration in accordance with existing laws.

The child and his family shall be entitled to protection as well as to the rights and benefits of witnesses under Republic Act No. 6981, otherwise known as "The Witness Protection, Security and Benefit Act".

The child shall also be considered as a victim of a violent crime defined under Section 3(d) of Republic Act No. 7309, otherwise known as "An Act Creating a Board of Claims under the Department of Justice for Victims of Unjust Imprisonment or Detention and

Victims of Violent Crimes and for Other Purposes", so that the child may claim compensation therein.

SEC. 15. *Penalties and Sanctions.* — The following penalties and sanctions are hereby established for offenses enumerated in this Act:

- a. Any person found guilty of syndicated child pornography as defined in Section 5 of this Act shall suffer the penalty of *reclusion perpetua* and a fine of not less than Two million pesos (Php2,000,000.00) but not more than Five million pesos (Php5,000,000.00);
- b. Any person found guilty of violating Section 4(a), (b) and (c) of this Act shall suffer the penalty of *reclusion temporal* in its maximum period and a fine of not less than One million pesos (Php1,000,000.00) but not more than Two million pesos (Php2,000,000.00)
- c. Any person found guilty of violating Section 4(d), (e) and (f) of this Act shall suffer the penalty of *reclusion temporal* in its medium period and a fine of not less than Seven hundred fifty thousand pesos (Php750,000.00) but not more than One million pesos (Php1,000,000.00);
- d. Any person found guilty of violating Section 4(g) of this Act shall suffer the penalty of *reclusion temporal* in its minimum period and a fine of not less than Five hundred thousand pesos (Php500,000.00) but not more than Seven hundred thousand pesos (Php700,000.00);
- e. Any person found guilty of violating Section 4(h) of this Act shall suffer the penalty of *prision mayor* in its maximum period and a fine of not less than Three hundred thousand pesos (Php300,000.00) but not more than Five hundred thousand pesos (Php500,000.00);
- f. Any person found guilty of violating Section 4(i) of this Act shall suffer the penalty of *prision mayor* in its minimum period and a fine of not less than Three hundred thousand pesos (Php300,000.00) but not more than Five hundred thousand pesos (Php500,000.00);
- g. Any person found guilty of violating Section 4(j) of this Act shall suffer the penalty of *prision correccional* in its maximum period and a fine of not less than Two hundred thousand pesos (Php200,000.00) but not more than Three hundred thousand pesos (Php300,000.00);
- h. Any person found guilty of violating Section 4(k) of this Act shall suffer the penalty of *prision correccional* in its medium period and a fine of not less than One hundred thousand pesos (Php100,000.00) but not more than Two hundred fifty thousand pesos (Php250,000.00);
- i. Any person found guilty of violating Section 4(l) of this Act shall suffer the penalty of *arresto mayor* in its minimum period and a fine of not less than Fifty thousand pesos (Php50,000.00) but not more than One hundred thousand pesos (Php100,000.00);
- j. Any person found guilty of violating Section 11 of this Act shall suffer the penalty of *prision correccional* in its medium period and a fine of not less than One million pesos (Php1,000,000.00) but not more than Two million pesos (Php2,000,000) for the first offense. In the case of a subsequent offense, the penalty shall be a fine of not less than Two million pesos (Php2,000,000.00) but not more than Three million

- pesos (Php3,000,000.00) and revocation of its license to operate and immediate closure of the establishment;
- k. Any ISP found guilty of willfully and knowingly failing to comply with the notice and installation requirements under Section 9 of this Act shall suffer the penalty of a fine of not less than Five hundred thousand pesos (Php500,000.00) but not less than One million pesos (Php1,000,000.00) for the first offense. In the case of subsequent offense, the penalty shall be a fine of not less than One million pesos (Php1,000,000.00) but not more than two million pesos (Php2,000,000.00) and revocation of its license to operate;
 - l. Any mall owner/operator and owner or lessor of other business establishments, including photo developers, information technology professionals, credit card companies and banks, found guilty of willfully and knowingly failing to comply with the notice requirements under Section 10 of this Act shall suffer the penalty of a fine not less than One million pesos (Php1,000,000.00) but not more than two million pesos (Php2,000,000.00) for the first offense. In the case of a subsequent offense, the penalty shall be a fine of not less than Two million pesos (Php2,000,000.00) but not more than Three million pesos (Php3,000,000.00) and revocation of its license to operate and immediate closure of the establishments; and
 - m. Any person found guilty of violating Section 13 of this Act shall suffer the penalty of *arresto mayor* in its minimum period and a fine of not less than One hundred thousand pesos (Php100,000.00) but not more than Three hundred thousand pesos (Php300,000.00).

SEC 16. Common Penal Provisions. —

- a. If the offender is a parent, ascendant, guardian, stepparent or collateral relative within the third degree of consanguinity or affinity or any person having control or moral ascendancy over the child, the penalty provided herein shall be in its maximum duration: *Provided*, That this provision shall not apply to Section 4(g) of this Act;
- b. If the offender is a juridical person, the penalty shall be imposed upon the owner, manager, partner, member of the board of directors and/or any responsible officer who participated in the commission of the crime or shall have knowingly permitted or failed to prevent its commission;
- c. If the offender is a foreigner, he/she shall be immediately deported after the complete service of his/her sentence and shall forever be barred from entering the country; and
- d. The penalty provided for in this Act shall be imposed in its maximum duration if the offender is a public office or employee.

SEC. 17. *Confiscation and Forfeiture of the Proceeds, Tools, and Instruments Used in Child Pornography.* — In addition to the penalty imposed for the violation of this Act, the court shall order the confiscation and forfeiture in favor of the government of all the proceeds, tools and instruments used in the commission of the crime, unless they are the property of a third person not liable for the unlawful act: *Provided, however*; That all awards for damages shall be taken from the personal and separate properties of the offender: *Provided, further*; That if such properties are insufficient, the deficiency shall be

taken from the confiscated and forfeited proceeds, tools and instruments.

All proceeds derived from the sale of properties used for the commission of any form of child pornography shall accrue to the special account of the DSWD which shall be used exclusively for the proper implementation of this Act.

When the proceeds, tools and instruments used in the commission of the offense have been destroyed, diminished in value or otherwise rendered worthless by any act or omission, directly or indirectly, of the offender, or it has been concealed, removed, converted or transferred to prevent the same from being found or to avoid forfeiture or confiscation, the offender shall be ordered to pay the amount equal to the value of the proceeds, tools and instruments used in the commission of the offense.

SEC. 18. *Mandatory Services to Victims of Child Pornography.* — To ensure recovery, rehabilitation and reintegration into the mainstream of society, concerned government agencies and the LGUs shall make available the following agencies and the LGUs shall make available the following services to victims of any form of child pornography:

- a. Emergency shelter or appropriate housing;
- b. Counseling
- c. Free legal services, which shall include information about the victim's right and the procedure for filing of complaints, claims for compensation and such other legal remedies available to them in a language understood by the child;
- d. Medical or psychological services;
- e. Livelihood and skills training; and
- f. Educational assistance.

Sustained supervision and follow through mechanism that will track the progress of recovery, rehabilitation and reintegration of the child victims shall be adopted and carried out.

SEC. 19. *Programs for Victims of Child Pornography.* — The Inter-Agency Council Against Child Pornography created under Section 20 of this Act shall develop and implement the necessary programs that will prevent any form of child pornography, as well as protect, heal and reintegrate the child into the mainstream of society. Such programs shall include, but not limited to, the following:

- a. Provision of mandatory services including counseling, free legal services, medical or psychological services, livelihood and skills training and educational assistance to the child pursuant to Section 18 of this Act;
- b. Sponsorship of a national research program on any form of child pornography and other acts covered by the law and the establishment of a data collection system for monitoring and evaluation purposes;
- c. Provision of necessary technical and material support services to appropriate government agencies and nongovernmental organizations;

- d. Sponsorship of conferences and seminars to provide venue for consensus building amongst the public, the academe, government, nongovernmental and international organizations; and
- e. Promotion of information and education campaign.

SEC. 20. *Inter-Agency Council against Child Pornography.* — There is hereby established an Inter-Agency Council Against Child Pornography, to be composed of the Secretary of the Secretary of the DSWD as chairperson and the following as members:

- a. Secretary of the Department of Justice;
- b. Secretary of the Department of Labor and Employment;
- c. Secretary of the Department of Science and Technology;
- d. Chief of the Philippine National Police;
- e. Chairperson of the Commission on Human Rights;
- f. Chairperson of the Commission on Information and Communications Technology;
- g. Commissioner of the National Telecommunications Commission;
- h. Executive Director of the Council for the Welfare of Children;
- i. Executive Director of the Philippine Center for Transnational Crimes;
- j. Executive Director of the Optical Media Board;
- k. Director of the National Bureau of Investigation; and
- l. Three representatives from children's nongovernmental organizations. These representatives shall be nominated by the government agency representatives of the Council, for appointment by the President for a term of three (3) years, and may be renewed upon renomination and reappointment by the Council and the President, respectively.

The members of the Council may designate their permanent representatives, who shall have a rank not lower than assistant secretary or its equivalent, to meetings, and shall receive emoluments as may be determined by the Council in accordance with existing budget and accounting, rules and regulations.

The DSWD shall establish the necessary Secretariat for the Council.

SEC. 21. *Functions of the Council.* — The Council shall have the following powers and functions:

- a. Formulate comprehensive and integrated plans and programs to prevent and suppress any form of child pornography;
- b. Promulgate rules and regulations as may be necessary for the effective implementation of this Act;
- c. Monitor and oversee the strict implementation of this Act;
- d. Coordinate the programs and projects of the various member agencies to effectively address the issues and problems attendant to child pornography;
- e. Conduct and coordinate massive information dissemination and campaign on the existence of the law and the various issues and problems attendant to child

pornography;

- f. Direct other agencies to immediately respond to the problems brought to their attention and report to the Council on the action taken;
- g. Assist in the filing of cases against individuals, agencies, institutions or establishments that violate the provisions of this Act;
- h. Formulate a program for the reintegration of victims of child pornography;
- i. Secure from any department, bureau, office, agency or instrumentality of the government or from NGOs and other civic organizations such assistance as may be needed to effectively implement this Act;
- j. Complement the shared government information system relative to child abuse and exploitation and ensure that the proper agencies conduct a continuing research and study on the patterns and schemes of any form of child pornography which form the basis for policy formulation and program direction;
- k. Develop the mechanism to ensure the timely, coordinated and effective response to cases of child pornography;
- l. Recommend measures to enhance cooperative efforts and mutual assistance among foreign countries through bilateral and/or multilateral arrangements to prevent and suppress any form of child pornography;
- m. Adopt measures and policies to protect the rights and needs of the victims of child pornography who are foreign nationals in the Philippines;
- n. Maintain a database of cases of child pornography;
- o. Initiate training programs in identifying and providing the necessary intervention or assistance to victims of child pornography;
- p. Submit to the President and the Congressional Oversight Committee created herein the annual report on the policies, plans, programs and activities of the Council relative to the implementation of this Act; and
- q. Exercise all the powers and perform such other functions necessary to attain the purposes and objectives of this Act.

SEC. 22. *Child Pornography as a Transnational Crime.* — Pursuant to the Convention on Transnational Organized Crime, the DOJ may execute the request of a foreign state for assistance in the investigation or prosecution of any form of child pornography by: (1) conducting a preliminary investigation against the offender and, if appropriate, to file the necessary charges in court; (2) giving information needed by the foreign state; and (3) to apply for an order of forfeiture of any proceeds or monetary instrument or property located in the Philippines used in connection with child pornography in the court: *Provided,* That if the DOJ refuses to act on the request of the foreign state, it must inform the foreign state of any valid reason for not executing the request or for delaying the execution thereof: *Provided, further,* That the principles of mutuality and reciprocity shall, for this purpose, be at all times recognized.

SEC. 23. *Extradition.* — The DOJ, in consultation with the Department of Foreign Affairs (DFA), shall endeavor to include child pornography among extraditable offenses in future treaties.

SEC. 24. *Congressional Oversight Committee.* — There is hereby created a Congressional Oversight Committee composed of five (5) Members from the Senate and five (5) Members from the House of Representatives. The Members from the Senate shall be

appointed by the Senate President based on the proportional representation from the parties or coalition therein with at least one (1) Member representing the Minority. The Members from the House of Representatives shall be appointed by the Speaker, also based on proportional representation of the parties or coalitions therein, with the Chair of the House Committee on Welfare of Children and at least one (1) member representing the Minority.

The Committee shall be headed by the respective Chairs of the Senate Committee on Youth, Women and Family Relations and the House of Representatives Committee on Justice. The Secretariat of the Congressional Oversight Committee shall come from the existing Secretariat personnel of the Committees of the Senate and the House of Representatives concerned.

The Committee shall monitor and ensure the effective implementation of this Act, determine inherent weakness and loopholes in the law and recommend the necessary remedial legislation or administrative measures and perform such other duties and functions as may be necessary to attain the objectives of this Act.

SEC. 25. *Appropriations.* — The amount necessary to implement the provisions of the Anti-Child Pornography Act and the operationalization of the Inter-Agency Council Against Child Pornography shall be included in the annual General Appropriations Act.

SEC. 26. *Implementing Rules and Regulations.* — The Inter-Agency Council Against Child Pornography shall promulgate the necessary implementing rules and regulations within ninety (90) days from the effectivity of this Act.

SEC. 27. *Suppletory Application of the Revised Penal Code.* — The Revised Penal Code shall be suppletorily applicable to this Act.

SEC. 28. *Separability Clause.* — If any part or provision of this Act is declared unconstitutional or invalid, the other provisions not affected thereby shall continue to be in full force and effect.

SEC. 29. *Repealing Clause.* — All laws, presidential decrees, executive orders, administrative orders, rules and regulations inconsistent with or contrary to the provisions of this Act are deemed amended, modified or repealed accordingly.

SEC. 30. *Effectivity.* — This Act shall take effect fifteen (15) days following its complete publication in the *Official Gazette* or in at least two (2) newspapers of general circulation.

Approved,

(Sgd.) JUAN PONCE ENRILE
President of Senate

(Sgd.) PROSPERO C. NOGRALES
Speaker of the House of Representatives

This Act which is a consolidation of Senate Bill No. 2317 and House Bill No. 6440 was finally passed by the Senate and House of Representatives on October 13, 2009.

(Sgd.) EMMA LIRIO-REYES
Secretary of Senate

(Sgd.) MARILYN B. BARUA-YAP
Secretary General House of Representatives

Approved: NOV 17 2009

(Sgd.) GLORIA MACAPAGAL - ARROYO
President of the Philippines



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